(On 200/ - Stamp paper)

APPENDIX

FORM OF AGREEMENT

Prel iminary agreement entered in to this……. day of……. ……. (2016) two thousand Sixteen ……. ……. .between Execut ive Engineer , LSGD Division, Kozhikode for and on behal f of the Governor of Kerala hereinafter cal led “the Government” of the one part and Shri . . . . . .(H.E Ful l name and address of the contractor) of the other part of the execut ion of the agreement as wel l as for the execut ion of the work “ . . . . . ”.

WHEREAS the Government invi ted tenders for the work: - “. . . . . ” (H E Ful l name of the work) by not if icat ion No. . . . . dated . . . . . .

AND WHEREAS Para 13 of the not ice invi t ing tenders stated as fol lows

Before commencing work or wi thin a week af ter the date when the acceptance of the tender has been int imated to him , the tenderer shal l deposi t a sum suf f icient to make up the balance of 5% of the probable value of cont ract which together wi th the amount of EMD shal l be t reated as secur i ty for the proper ful f i l lment of the same and shal l execute an agreement for the work in the LSGD Schedule form. If he fai ls to do this or in the case of LSGD/PWD Cont racts not maintain a speci f ied rate of progress (to be speci f ied in each case in the tender schedule) the EMD and SD shal l be for fei ted to Government and f resh tenders shal l be cal led for or the mat ter otherwise disposed of f . If as a resul t of such measures , due to the defaul t of the tenderer to pay the requisi te deposi t , sign the cont racts or take the possession of the work, any loss to Government due to the same wi l l be recovered f rom him as ar rears of revenue , but should i t be a saving to Government , the or iginal cont ractor shal l have no claim whatever , to the di f ference

Recover ies on thi s or any other account wi l l be made f rom the sum that may due to the cont ractor on this or any other subsist ing cont racts under the Revenue Recovery Act , or otherwise the Government may decide

NOW THEREFORE IN THE PRESENCE OF WITNESS , i t is mutual ly agreed as fol lows

The terms and condi t ions for the said cont ract having been st ipulated in the said tender form to which the cont ractor has agreed , a copy of which is hereto appended which forms par t of the agreement . It is agreed that the terms and condi t ions st ipulated therein shal l bind the par t ies to this agreement except to the extend to which they are abrogated or al tered by express terms and condi t ions herein agreed to and in which respect the express provisions herein shal l supersede these of the said tender forms

2. The Cont ractor hereby agree and under take to per form and ful f i l l al l the operat ions and obl igat ions connected wi th the execut ion of the said contract (H.E name of work) : -“. . . . . ” i f awarded in favour of the cont ractor .

3. If the cont ractor does not come forward to execute the or iginal agreement af ter the said work is awarded and select ion not ice issued in his favour commi ts breach of any of the condi t ions of cont ract as st ipulated in clause 13 of the not ice invi t ing tenders

as quoted above wi thin the per iod st ipulated the Government may rear range the work otherwise or get i t done depar tmental ly at the r isk and cost of the cont ractor and the loss so sustained wi l l be recovered by the Revenue Recovery Act as i f ar rears of land revenue as assessed. , quant i f ied and f ixed by an adjudicat ing author i ty consist ing of the Chief Engineer , LSGD or any other of f icers author ized by Government in i ts behal f , taking in to considerat ion the prevai l ing LSGD rates and af ter giving due not ices to the cont ractor . The decisions taken by such author i ty, or the of f icer , or of f icers shal l be f inal and conclusive and shal l be binding on the cont ractor

4. The cont ractor fur ther agrees that any amount found due to the Government under or by vi r tue of this agreement shal l be recoverable f rom the cont ractor f rom his EMD and his proper t ies, movable and immovable, as a ar rears of land revenue under the provisions of the Revenue Recovery Act for the t ime being in force or any other manner as the Government may deem f i t in this regard

5. The cont ractor fur ther assures that i t is clear ly understood that the set t lement of claims ei ther by par t bi l ls or by f inal bi l ls wi l l be made only according to the avai labi l i ty of budget provisions and al lotment of funds made wi th the Divisional Of f icer in charge of the work under the respect ive heads of account in which the work is sanct ioned and ar ranged and also subject to the senior i ty of such bi l ls. No claim for interest or for damages whatsoever shal l be made for the belated set t lement of claims of bi l ls

IN WITNESS WHERE OF Shr i /Smt . . . . . .Execut ive Engineer , LSGD Divi sion, Kozhikode (H.E name of the of f icer of the depar tment and on behal f of the Governor) and Shr i . . . . . the Cont ractor have set thei r hands on the day and year 1st above wr i t ten

Signed by Sr i . . . . . .

Execut ive Engineer , LSGD Division, Kozhikode. In the presence of wi tnesses

1.

2.

Signed and del ivered by Shr i……..

(Cont ractor)

In the presence of wi tnesses.

1

2.